

interfered with the proceedings and filed a false affidavit therein); *Lynch v. Johnson*, 420 F.2d 818 (6th Cir. 1970) (state judge may not be immune for acts done as chairman of an administrative body when he was not in the performance of any judicial duties); *Yates v. Hoffman Estates*, 209 F.Supp. 757 (D.C.Ill. 1962) (judge held liable under §1983 for having performed the "non-judicial action" of directing a police officer to arrest and take into custody a person not named in a warrant); *Penn v. Eubanks*, 360 F.Supp. 699 (M.D.Ala. 1973) (judge of a state jury board subject to liability for administrative acts taken in that capacity); *Ex parte Virginia*, 100 U.S. 339 (1879) (selection of jurors not a judicial act which could grant immunity).

In light of all the foregoing considerations, the point has now been reached where Judge Stump's action in approving the sterilization of Linda Kay Sparkman must be tested as being either a judicial or a non-judicial action.

II

IN THE TOTAL ABSENCE OF ANY JUDICIAL PROCEEDING HAVING BEEN INVOKED OR EVEN CONTEMPLATED, JUDGE STUMP'S SECRET APPROVAL OF THE PERMANENT STERILIZATION MUST BE DEEMED A NON-JUDICIAL ACT AS TO WHICH NO JUDICIAL IMMUNITY ATTACHES.

From every standpoint, starting with either the public interest or the judicial values implicit in the judicial immunity concept, Judge Stump's secret signing of the sterilization approval in 1971 bears none of the markings of a judicial act. Indeed, it is at once an act so unfair, so destructive of due process, so totally devoid of judicial concern for the interests and well-being of the young girl involved as to lack all pretense of qualifying as a judicial

act. Such a severe conclusion is compelled by the following considerations pertinent to the judicial immunity concepts:

[1] The petition and approval portion signed by the judge, which apparently were drafted by the attorney for Linda's mother, neither constituted nor related to the institution of any kind of judicial proceeding. The petition had no case caption naming parties or naming any court. No number was ever assigned to the matter. Indeed, no attempt was made to file or deposit these documents, or any other piece of paper, in the Clerk's Office of the Court on which Judge Stump sat. Not even Judge Stump was left with a copy of what he had signed. To this day, no proceeding of any kind, to which this sterilization approval might somehow be related, has ever been instituted before Judge Stump or the Court on which he still sits.⁵

[2] The petition was presented in some secretive manner to Judge Stump, and he signed the sterilization approval in some equally secretive manner still not revealed. No attempt was made by Judge Stump to appoint a guardian *ad litem* to protect and represent the interests of a juvenile whose mother had asserted a cruelly adverse position. Nor was any step taken by Judge Stump to ensure that Linda would be notified of the impending sterilization in time to protest so permanent a loss of her ability to procreate. Thus were lacking the two most elemental of the

⁵The fact that no judicial proceeding of any kind was ever instituted before Judge Stump serves to distinguish this case from *Quindlen v. Hirschi*, 284 P.2d 723 (Okla. 1955), much relied upon in Petitioners' Brief, p. 22. In *Quindlen* an "insanity case" had been instituted in the state court; the only defect was the failure to notify the minor girl or to appoint a guardian *ad litem*.